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During the first part of the year, the Central African Republic (CAR) continued to be a multiparty state led by President Ange-Félix Patassé, who had been re-elected in 1999. However, on March 15, a 6-month rebellion culminated in a military coup led by former Armed Forces Chief of Staff General François Bozizé, with the assistance of demobilized Chadian soldiers and the tacit involvement of active Chadian soldiers. General Bozizé declared himself President, suspended the Constitution, and dissolved the National Assembly. Between March and June, he appointed a Prime Minister; appointed a transitional cabinet from members of all political parties, including the party of deposed President Patassé, and civil society; and established a National Transitional Council (NTC), a law-advisory body intended to reestablish the rule of law, assist the presidency in drafting a new constitution, and prepare the country for multiparty elections in 2004 and 2005. The suspended Constitution provides for an independent judiciary; however, the judiciary was subject to executive interference, both before and after the March 15 coup.

The National Police are under the direction of the Ministry of Interior and Public Security, while the military forces and the National Gendarmerie are under the jurisdiction of the Ministry of Defense; all shared responsibility for internal security. Civilian authorities did not maintain effective control of the security forces. Following the coup, the Presidential Security Unit (USP) was dissolved on April 30 and reintegrated into the National Army. In addition, President Bozizé ordered the disbandment of the Security Investigation Division (SERD), a military intelligence unit which operated as part of presidential security services, due to accusations that the SERD committed human rights abuses such as torture, rape, and extortion during the year; however, this order had not been carried out by year's end. Former members of the security forces were involved in the coup. In December, President Bozizé signed an order dismissing a number of soldiers from the army because of indiscipline; the soldiers named reportedly were removed from army lists and sent home. As part of its efforts to protect citizens and safeguard property, in May the Bozizé Government launched joint security operations in the capital conducted by the Armed Forces, the Central African Economic and Monetary Community (CEMAC) force, and French forces. Members of the security forces committed numerous serious human rights abuses.

The economy, already extremely weak because of repeated political-military troubles and a cycle of coup attempts, was in a state of collapse, with approximately 60 percent of the population living at or below the poverty line. The economy was partially market-based and partially government directed, and was dominated by subsistence agriculture. Approximately 80 percent of its 3.8 million inhabitants were farmers. Foreign assistance remained an important source of national income. After the coup, most international donors suspended financial assistance, although by year's end, many had resumed assistance programs. Large-scale looting and vandalism in the wake of the coup devastated not only the state infrastructure and facilities but also the remaining economic and industrial activity of the country. The salary arrears owed to civilian employees and the military continued to impair the functioning of the Bozizé Government and the ability of the State to enforce the rule of law. Before and after the March coup, misappropriation of public funds and corruption in the Government remained widespread. In addition, the large displacement of persons during and following the October 2002 coup attempt and the March 15 coup adversely affected economic productivity during the year.

The Government's human rights record remained poor; although there were some improvements in a few areas, serious problems remained. Citizens did not have the right to peacefully change their government during the year. Security forces continued to commit extrajudicial and other unlawful killings, including government-tolerated executions of suspected bandits, with impunity. The 6-month rebellion in the north, culminating in the March 15 coup, resulted in numerous killings of civilians in Bangui and the northern part of the country by security forces and both pro- and anti-government rebels. During and following the coup, security forces, pro-government rebels of the Movement for the Liberation of Congo (MLC) from the Democratic Republic of the Congo (DRC), and Bozizé's rebels engaged in widespread looting, beating, and raping of civilians. Security forces continued to torture, beat, and otherwise abuse suspects and prisoners. Impunity remained a problem. Other abuses included harsh prison conditions, arbitrary arrest, prolonged detention without trial, and infringements on privacy. The Government restricted freedom of the press, assembly, and association. There were limits on movement. The coup resulted in numerous deaths and abuses, thousands of internally displaced persons (IDPs), and significant numbers of refugees in neighboring countries. Violence and discrimination against women, female genital mutilation (FGM), child prostitution, discrimination against indigenous people (Pygmies), trafficking in persons, and child labor, including instances of forced child labor, continued to be problems. Societal violence also remained a problem.

Between January and the March 15 coup, MLC rebels loyal to the Patassé Government committed numerous killings and abuses of civilians, including acts of torture, numerous rapes, harassment, and widespread looting. Between January and the March 15 coup, pro-Bozizé rebels, including former members of the security forces and Chadian combatants, committed numerous killings and rapes of civilians in the north and in Bangui. Widespread looting by Bozizé's rebels was a serious problem. After March 15, the MLC forces were forced to flee back to the DRC.

RESPECT FOR HUMAN RIGHTS

Section 1 Respect for the Integrity of the Person, Including Freedom from:

a. Arbitrary or Unlawful Deprivation of Life

There were no reports that security forces committed political killings; however, security forces continued to commit extrajudicial killings with impunity throughout the year. Fighting between government and rebel soldiers in the North and the subsequent March 15 coup in Bangui resulted in numerous killings of civilians.

During the year, the special police Squad for the Repression of Banditry (OCRB) continued to operate and were responsible for extrajudicial killings and torturing civilians. The OCRB committed such abuses with tacit government support and popular approval, partly because the OCRB's actions were seen as an effective means of reducing

crime. There were fewer reports that the OCRB killed persons after President Bozizé came into power. The Government did not take action against OCRB members responsible for killings or other abuses committed during the year.

There were credible reports that the security forces continued to commit extrajudicial killings with impunity under President Bozizé's rule. On December 3, members of the security forces reportedly killed three young boys belonging to a local self-defense and anti-poaching unit in the eastern province of Haute Kotto. The boys were reportedly tortured at the headquarters of the SERD in Bangui and later taken to the Ndres cemetery where they were summarily executed. The Government took no action against the soldiers responsible for the killings.

There were credible reports that security forces committed other unlawful killings, some allegedly in connection with personal disputes or rivalries. For example, on August 18, security forces of General Bozizé killed one student and injured others in front of a high school. The responsible soldier was arrested and demoted.

On September 18, retired Gendarmerie Captain Joseph Koyanao was found dead in Bangui after he had been shot several times; his relatives believe he was killed by or on the orders of an army officer because of a property dispute. The case was under investigation at year's end.

In September, members of the military reportedly killed a Nigerian trader on the road to Boali. By year's end, no action had been taken against the soldiers responsible for the killing.

There were no further developments in the January 2002 killing of two civilians by soldiers or the December 2002 killing of a magistrate by a soldier.

During President Patassé's rule, sporadic border clashes in the north between security forces and rebel soldiers loyal to General Bozizé continued to result in the killing of an undetermined number of civilians.

In addition, from the 2002 coup attempt until the March 15 coup, rebel soldiers loyal to General Bozizé killed numerous civilians in areas under their control. However, no numbers were available because those areas remained inaccessible to nongovernmental organizations (NGOs) and humanitarian groups.

During the first part of the year, MLC troops committed numerous extrajudicial killings of civilians, raped numerous women and girls, and engaged in widespread looting of houses and businesses; MLC troops killed civilians with the tacit support of the Patassé Government, including suspected supporters of Bozizé. Following a failed coup attempt by General Bozizé's rebels in October 2002, MLC President Jean-Pierre Bemba sent approximately 1,500 MLC troops to assist President Patassé's security forces in fighting General Bozizé's rebels. Following the March 15 coup, MLC troops returned to the DRC.

From the beginning of the year until the March 15 coup, MLC rebels under Bemba's command reportedly killed and raped numerous persons in Bangui and in the northern part of the country.

During the March 15 coup in Bangui, fighting between pro-government forces and General Bozizé's rebels and the shooting of looters by the rebels resulted in numerous deaths. During the fighting, security forces killed individuals because of their ethnicity or on the suspicion that they were members of Bozizé's rebels. Both sides, particularly the Government, targeted densely populated areas; security forces launched rockets and mortar rounds indiscriminately into neighborhoods suspected of harboring rebels, and both sides committed summary executions.

On March 15, General Bozizé's rebels reportedly killed three Congolese soldiers from the CEMAC peacekeeping force in Bangui at President Patassé's residence.

Following the coup, General Bozizé's rebels and MLC troops before their withdrawal continued to commit massive human rights violations such as killings, beatings, and racketeering.

During and after the March 15 coup, there were reports of killings committed by Chadian combatants who assisted General Bozizé in the coup. Human rights organizations and some political parties called for the repatriation of the armed Chadian forces and for the trial of those accused of crimes. In June, President Bozizé personally conducted a disarmament mission in some police stations in Bangui held by Chadian soldiers. In June, with the assistance of CEMAC peacekeeping forces, most of the Chadian combatants were sent back to Chad.

No action was taken against security forces responsible for killings following the attempted coups in October 2002 and May 2001.

No action was taken against rebel soldiers loyal to General Bozizé responsible for the killing of numerous civilians in the October 2002 attempted coup.

No report had been published by year's end by the 2002 Patassé commission of inquiry into the deaths of 63 Sudanese in May 2002, which were attributed to societal violence.

Civilians continued to take vigilante action against presumed thieves, poachers, and some persons believed to be Chadian combatants. For example, on December 5, vigilantes killed two Chadian combatants; earlier that same day, the two Chadians had reportedly killed Patrick Assombele, a Lieutenant in the Armed Forces, in a Bangui suburb. Perpetrators were generally not prosecuted and received popular support.

Mobs reportedly continued to injure and kill suspected sorcerers or witches during the year.

b. Disappearance

There were no confirmed reports of politically motivated disappearances by the Government during the year; however, there were reports of disappearances during the months-long rebellion that culminated in the March coup in the North.

During the year, cattle raiders kidnapped, held hostage, and demanded large ransoms for the children of cattle herdsman. For example, on November 18, a group of cattle raiders demanded \$3,300 (2 million CFA francs) before releasing 10 herdsman's sons in Boyali.

c. Torture and Other Cruel, Inhuman, or Degrading Treatment or Punishment

The Penal Code prohibits torture and specifies sanctions for those found guilty of physical abuse; however, police continued to torture, beat, and otherwise abuse criminal suspects, detainees, and prisoners. The Government did not take effective action to punish police who tortured suspects, and impunity remained a problem. Family members and human rights groups, including the Human Rights League (HRL) Executive Committee, pursued court complaints filed in previous years with the prosecutor regarding the deaths of several prisoners due to police abuse; however, authorities continued not to take action on any of the cases. The HRL did not file any court complaints of police abuse during the year.

Police beat persons while forcibly dispersing demonstrators (see Section 2.b.).

No investigation was conducted into the 2001 beating by gendarmes of Assingambi Zarambaud, who had published a series of articles critical of the Government; however, in April, Zarambaud was freed and became a minister in the Government.

In August, a member of the military reportedly raped a woman at Camp Beal in Bangui. In November, the Central African Human Rights League (LCDH) criticized the Government for not taking action against the soldier responsible.

On October 28, five presidential guards gang-raped a woman at the barracks of the SERD in Bangui; the woman had been apprehended in the street by patrolling security forces. Her husband, who went to the SERD barracks and requested her release, was severely beaten and tortured. Shortly after the rape was reported, the five guards and two of their accomplices were arrested and dismissed from the army.

Juvenile Court President Magistrate Brigitte Balipou, head of the Humanitarian Commission, declared during an interview with Radio France Internationale that approximately 400 women and young girls who had been raped by MLC forces, were being cared for by humanitarian organizations that provided psychological assistance and medical care to those infected by HIV/AIDS and sexually transmitted diseases.

Members of the armed forces often committed other abuses against civilians, including armed robbery and racketeering. No action generally was taken against soldiers involved in such abuses.

During the months-long rebellion that culminated in the March coup, soldiers loyal to the Patassé Government and General Bozizé's rebel troops committed serious violations of human rights and humanitarian law, including widespread looting, rape, disappearances, inhuman, cruel and degrading treatment, and the recruitment and use of children as soldiers.

There were reports that pro-Patassé MLC troops based around Bangui committed numerous abuses of civilians, including torture, killings, rape, and harassment.

On May 15, the private newspaper Le Citoyen criticized some pro-Bozizé Chadian combatants for committing abuses against taxi and bus drivers, including torture, beatings, and theft of vehicles or goods. Taxi and bus drivers were regularly beaten in the street (see Section 1.d.).

Following the coup, there continued to be reports that Abdoulaye Miskine, a pro-Patassé Chadian ally who led forces against General Bozizé in 2002 and early in the year, continued to commit abuses against civilians in the northwestern part of the country.

No action was taken against members of security forces, rebel groups, and foreign rebels who committed abuses against the population during the year.

Prison conditions were extremely harsh. Prison cells were overcrowded, and basic necessities, including food, clothing, and medicine, were in short supply and often were confiscated by prison officials for their personal use. There were reports that guards tortured prisoners and that women inmates were raped. Prisoners depended on family members to supplement inadequate prison meals and were sometimes allowed to forage for food in areas near the prison. Prisoners frequently were forced to perform uncompensated labor at the residences of government officials and magistrates. Prison conditions outside of Bangui were generally worse, and most of these prisons were

completely destroyed during the fighting between January and March.

In October, the Government reopened Ngaragba Prison, the only prison for men in Bangui, after 7 months of closure. Male prisoners who were being held in police and gendarmerie stations were transferred to the facility. The Ngaragba Prison was among the public facilities that were looted, damaged, or destroyed following the 15 March coup, which resulted in the escape of many detainees.

Male and female prisoners were held in separate facilities in Bangui but housed together elsewhere. There were no separate detention facilities for juvenile prisoners, who routinely were housed with adults and often subjected to physical abuse. Pre-trial detainees were not held separately from convicted prisoners.

The Government permitted prison visits by human rights observers. The International Committee for the Red Cross (ICRC) and religious groups routinely provided supplies, food, and clothes to prisoners. The ICRC had unrestricted access to prisoners.

d. Arbitrary Arrest, Detention, or Exile

The law provides protection against arbitrary arrest and detention and accords the right to a judicial determination of the legality of detention; however, the security forces frequently ignored such provisions, and arbitrary arrest and detention were problems.

Police were not effective, partly as a result of salary arrears owed by the Government and a lack of resources. Many citizens lacked faith in the police, and consequently, mob violence against persons suspected of theft and other offences remained a problem (see Section 1.a.). The Government did not take effective action to punish abusers, and impunity remained a problem. During the year, the LCDH sharply criticized the police and other security forces, and accused the security forces of terrorizing the population, killing civilians, and committing armed robbery.

Judicial warrants were not required for arrest. The law stipulates that persons detained in cases other than those involving national security must be brought before a magistrate within 96 hours. In practice authorities often did not respect this deadline, in part due to inefficient judicial procedures. By law national security detainees are defined as "those held for crimes against the security of the state" and may be held without charge for up to 2 months; however, in practice persons were held without charge for long periods. The law allows detainees to have access to their family and to legal counsel; however, in cases involving state security, the Government prohibited detainees from consulting legal counsel, pending an investigation. Indigent detainees may request a lawyer provided by the Government. Detainees were allowed to post bail or have family members post bail for them. Lawyers and families generally had free access to detainees.

On January 25, security forces arrested Joseph Bendounga, leader of the Movement for the Rebuilding and Evolution of CAR, at the airport while trying to leave the country. He was released by the court on February 12.

On February 21, members of the Presidential Guard arrested General Bozizé's son, Socrates, a 23-year-old student. After he was accused of sending sensitive information to his father in Paris, Socrates was publicly beaten in the streets and taken to SERD headquarters. He was later released during the March coup.

On June 8, police arrested eight leaders of the former ruling political party of President Patassé, the Movement for the Liberation of the Central African People (MLPC) during a meeting in Bangui. The eight leaders were accused of organizing "subversive meetings" to destabilize the Government. They were released on June 10.

On November 12, security forces arrested former chief of the Presidential guard, General Ferdinand Bomayéké, after he left his refuge at the French Embassy. According to the General Prosecutor, General Bomayeke was accused of threats, numerous killings of civilians through air bombardments, arbitrary arrests, rape, and destruction of public and private properties. He had not been tried by year's end.

Security forces arrested journalists during the year (see Section 2.a.).

Police arrested demonstrators during the year (see Section 2.b.).

Colonel Danzoumi Yalo was arrested on December 23 allegedly for plotting a coup. The case was under investigation at year's end.

On May 14, Chadian soldiers arrested lawyer and human rights activist Emilien Bizon Jr. after he publicly protested the beating of a taxi driver in downtown Bangui. He was freed a few hours later, after a protest by the Bar and human rights organizations.

Prolonged pre-trial detention was a serious problem; however, the number of pre-trial detainees was unknown at year's end. Detainees were usually informed of the charges levied against them; however, many waited in prison for several months before seeing a judge. Some detainees remained in prison for years because of lost files and bureaucratic obstacles.

The suspended Constitution does not permit the use of exile, and the Government did not employ it in practice. The Government has stated repeatedly that any person in exile for strictly political, rather than criminal, reasons may return without fear of persecution. The April amnesty granted by President Bozizé encouraged thousands of exiles, including former President André Kolingba, members of Kolingba's Yakoma ethnic group, and Rwandan refugees, to return home, mostly from the DRC, and the Republic of the Congo (ROC) (see Sections 1.e. and 2.d.). In addition, approximately 1,000 members of the military who fled following the failed 2001 coup were reintegrated into the army on a case-by-case basis.

On April 9, Jean-Paul Ngoupande, the opposition leader who fled the country after gendarmes invaded his house in January 2001, returned to the country and was appointed as a special advisor to President Bozizé.

On April 22, dignitaries of the former Patassé regime, including former Vice-President Hugues Dobozeni and former President of the National Assembly, Appolinaire Dondon, returned home and were able to move freely throughout the country.

e. Denial of a Fair Public Trial

The suspended Constitution provides for an independent judiciary; however, the judiciary was subject to executive interference, both before and after the March 15 coup. There was inefficient administration of the courts, a shortage of trained personnel, growing salary arrears, and a lack of material resources.

The judiciary consists of a tribunal of first instance, the court of appeal, the cassation court, the High Court of Justice, commercial and administrative courts, a military court, and the Constitutional Court. The highest court is the Constitutional Court, which determines whether laws passed by the National Assembly conform to the Constitution. The Constitutional Court also receives appeals challenging the constitutionality of a law. The Constitutional Court

was dissolved after the coup on March 15. Lower courts hear criminal and civil cases and send appeals to the Court of Appeals. Military courts tried only soldiers, not civilians. The courts of justice and the juvenile court barely functioned due to inefficient administration, shortage of trained personnel, salary arrears, and a lack of resources.

In general trial procedures, if the prosecutor believes there is sufficient evidence that an offense has occurred and that the accused committed it, he places the accused under an arrest warrant. If there is insufficient evidence, the case is dropped. Trials are held publicly, and defendants have the right to be present and to consult a public defender. Defendants also have the right to question witnesses, to present witnesses and evidence on their own behalf, and to have access to government-held evidence relevant to their case. Defendants are presumed innocent until proven guilty, and if convicted, defendants have the right to appeal. The Government generally complied with these legal requirements; however, the judiciary did not enforce consistently the right to a fair trial, and there were many credible reports of corruption within the court system. A number of persons were subjected to prolonged detention without trial or were killed summarily and extrajudicially (see Section 1.a.).

The Criminal Court did not resume its activities after the March coup. Many cases remained pending before the Court, including the cases of former Minister of Communication and second Vice-President of the former ruling MLPC party and Patassé's spokesman, Jean-Edouard Koyambounou, who remained in pre-trial detention in the Ngaragba prison. Koyambounou was accused of misappropriation of public funds.

Due to judicial inefficiency, citizens in a number of cities established their own courts to deal with cases through parallel justice.

On April 23, President Bozizé granted amnesty to 800 persons, including former President André Kalingba, who were convicted in August 2002 of involvement in a coup attempt in 2001; there were no reports that they experienced government harassment.

On August 28, the State Prosecutor issued an international warrant for the arrest of former President Patassé, who remained in exile, for embezzlement of public funds, human rights violations, and economic crimes.

There were no reports of political prisoners.

f. Arbitrary Interference with Privacy, Family, Home, or Correspondence

The law prohibits invasion of homes without a warrant in civil and criminal cases; however, on occasion police used provisions of the Penal Code governing certain political and security cases that allow them to search private property without a warrant. Security forces continued to carry out warrantless searches for guns and ammunition in private homes. The increase of banditry in Bangui has become a pretext for the police to carry out warrantless house searches.

During the fighting prior to and during the coup, troops from both sides illegally entered, searched, and looted homes, in some cases killing the residents, and in other cases causing them to flee. Ministries and residences of former dignitaries were looted and destroyed. Hundreds of vehicles belonging to the Government, private companies, and individuals were also stolen. Bozizé's rebels looted homes, businesses, and church and NGO properties, according to missionary groups, the Central African (Catholic) Episcopal Conference (CAEC), and residents who fled to Bangui.

Following the coup, the joint security forces, supported by CEMAC troops, continued to carry out warrantless searches of entire neighborhoods and seized vehicles, electronic goods, appliances, and other items for which residents could not produce sales receipts, alleging that the property was stolen. Few of these items were returned to the owners.

From April to July, police and gendarmes in Bangui surrounded several neighborhoods and searched houses for arms as part of a mandatory disarmament program.

After the coup, Bozizé's forces conducted massive looting in Bangui and in other parts of the country.

The Government continued to engage in wiretapping without judicial authority.

Section 2 Respect for Civil Liberties, Including:

a. Freedom of Speech and the Press

The suspended Constitution provides for freedom of speech and of the press; however, the Government continued to restrict the freedom of the press, particularly the freedom of the print media to criticize the Government. The law criminalizes offenses such as defamation committed by members of the media, and some journalists and editors were imprisoned during the year. The Government continued to dominate domestic broadcast media. Before the March coup, pressure from the Patassé Government resulted in the self-censorship of journalists in both the public and private press; however, local media observers said there has been greater press freedom since President Bozizé took power.

The law prohibits the Government from censoring the press and defines the rights and responsibilities of private media.

At the beginning of the year, the Patassé Government owned and controlled three newspapers, the Centrafrique Presse, the Agence Centrafricaine de Presse (ACAP) bulletin, which appeared sporadically, and Forum de l'Unite. Echo de Centrafrique, a private daily newspaper, was influenced by and treated favorably the ruling party. More than a dozen private newspapers were published at varying intervals and often criticized the President, the Government's economic policies, and official corruption. President Bozizé did not control any newspapers.

Radio was the most important medium of mass communication because the literacy rate was low, and newspapers and television were relatively expensive and rarely found outside urban areas. The Government owned and operated a radio station and a television station. The activities of the President and other senior government officials dominated programming. On January 8, the former National Assembly passed a law creating the CAR Radio and Television Office (ORTCA), making it a parastatal for better management. Private citizens can own shares in this new company. The USP remained in control of the national radio station until the March 15 coup, when they were replaced by the national police force.

There were no privately owned stations that broadcast domestically produced national news or political commentary. Africa Number One, a private radio station in Bangui, broadcast national news coverage. Radio Notre Dame, which was owned and operated by the Catholic Church, broadcast national news, debates, legal counseling, and human rights education. Radio-France Internationale (RFI) also broadcast domestically; its programming included some national news coverage by a correspondent based in the country. The private radio station N'Deke Luka broadcast from Bangui on FM with assistance from foreign governments and development organizations.

The Government continued to monopolize domestic television broadcasting. The High Council of Communication was responsible for authorizing private television as well as radio stations, but received no applications to establish a private television station.

During the year, security forces arrested, detained, threatened, or otherwise harassed some journalists. For example, on February 19, police in Bangui detained Joseph Bénamasé, a correspondent for the British Broadcasting Corporation and the Associated Press. The authorities interrogated him about his reports on the presence of Rwandan troops among MLC rebels who were supporting President Patassé; Bénamasé was released later that day.

On February 20, police arrested Marthurin Momet, the editor of the private newspaper *Le Confident*, in Bangui and held him in incommunicado detention. He was accused of threatening internal security and "inciting hatred" after publishing articles in February criticizing the pro-government MLC forces for committing human rights abuses, and President Patassé for failing to control the MLC rebels. On March 3, newspapers in Bangui suspended publication for 48 hours to protest Momet's detention, and on March 15, following the coup by General Bozizé, Momet was released.

On July 7 and 8, authorities threatened and summoned Faustin Bambou, publication director of the newspaper *Les Collines du Bas-Oubangui*, to the police station in Bangui; police officers interrogated him about a July 3 article in which he criticized the privileges granted by the Government to a Chadian businessman. In the following week, the General Prosecutor also interrogated Bambou.

On July 11, police in Bangui arrested Ferdinand Samba, publication director of the independent daily *Le Démocrate*, on accusations of inciting panic and disseminating "alarming and incorrect information." Police interrogated him about a July 8 article in which he reported that rebels loyal to former President Patassé had launched an attack on the city of Kaga Bandoro. Samba was released on July 15 and was not charged with any offense.

During the first 2 months of the year, authorities censored two international radio stations, RFI and Africa Number One, by forcing them to stop broadcasting for several days because they reported on Bozizé's troops' progress.

On May 18, police arrested and detained Michel Ngokpele, publication director of the privately-owned newspaper *Le Quotidien de Bangui*, in the southwestern city of Mbaiki. The arrest followed the May publication of an article in which he detailed acts of corruption and embezzlement allegedly committed by the head doctor at the Mbaiki hospital, with the complicity of a local prosecutor and a police commissioner. On June 26, a court in Mbaiki sentenced Ngokpele to 6 months' imprisonment with no parole for defamation and "incitement to ethnic hatred." At year's end, Ngokpele remained in prison.

The Government did not limit Internet access.

The Government did not restrict academic freedom. University faculty and students belonged to many political parties and generally expressed their views without fear of reprisal.

b. Freedom of Peaceful Assembly and Association

The suspended Constitution provides for the right of assembly; however, the Government at times restricted this right. Organizers of demonstrations and public meetings were required to register with the Government 48 hours in advance, and political meetings in schools or churches were prohibited. The Government wanted any association to

write a letter to the Ministry of Interior and get the Ministry's approval prior to holding any meeting. In many cases, when associations asked for such approval, the Ministry refused "for security reasons."

On February 15, the Ministry of Interior cancelled a meeting by a political opposition party for security reasons and because of the occupation of part of the country by General Bozizé. Under President Patassé's rule, most of the leaders of the opposition were often accused of supporting the rebellion of General Bozizé.

Police forcibly dispersed several demonstrations during the year by university students and professors protesting the non-payment of scholarships and salaries by the Government. In January, police used tear gas to break up one such demonstration.

In December, police arrested demonstrators of the "pot strike" during a peaceful march. Following the encouragement of opposition leaders, demonstrators used pots to make noise for 2 minutes each day, from December 27 to 31, to protest human rights abuses committed by MLC soldiers and to request the withdrawal of Libyan and MLC soldiers. The demonstrators were released several days after the strike.

No action was taken against members of the security force responsible for the use of excessive force to disperse demonstrations in 2002 or 2001.

The suspended Constitution provides for freedom of association; however, the Government limited it in practice. All associations, including political parties, must register with the Ministry of Interior to enjoy legal status. The Government usually granted registration expeditiously. A variety of associations have registered with the Government following a 3-month background investigation; there were more than 35 registered political parties and a variety of nonpolitical associations. The Government normally allowed them to hold congresses, elect officials, and publicly debate policy issues without interference, except when they advocated sectarianism or tribalism. After March 15, political parties operated freely.

The law prohibiting nonpolitical organizations from coalescing for political purposes remained in place; there were no reports of enforcement of this law.

c. Freedom of Religion

The suspended Constitution provides for freedom of religion but establishes fixed legal conditions and prohibits what the Government considers religious fundamentalism or intolerance. The Government closed 34 churches during the year. The constitutional provision prohibiting religious fundamentalism was understood widely to be aimed at Muslims, who make up approximately 15 percent of the population.

Religious groups (except for traditional indigenous religious groups) were required by law to register with the Ministry of Interior. The Ministry's administrative police kept track of groups that failed to register; however, the police did not attempt to impose any penalty on such groups. The Ministry could decline to register, suspend the operations of, or ban any organization that it deemed offensive to public morals or likely to disturb the peace. Any religious or nonreligious group that the Government considered subversive was subject to sanctions. The Ministry of Interior also could intervene to resolve internal conflicts about property, finances, or leadership within religious groups. However, the Government imposed no new sanctions on any religious group during the year.

On September 26, the Minister of Territorial Administration issued a decree suspending the activities of 34 churches because they were created with disregard for official rules and regulations. To resume their activities, religious institutions must prove that they have a minimum of 1,000 members; the reverends must bring evidence that they graduated from the highest religious schools and fulfilled official requirements on church creation. This decree was intended to regulate the proliferation of places of worship.

General Bozizé's church was reopened after the March 15 coup.

In general, there was religious tolerance among members of different religious groups during the year; however, there were occasional reports that some villagers who were believed to be witches were harassed, beaten, or sometimes killed by neighbors.

During the fighting in the north, especially in Bossangoa, the Chadian combatants of General Bozizé looted churches and killed two priests. Bandits and rebels of both sides attacked, robbed, and injured missionaries and Muslims during the year.

For a more detailed discussion, see the [2003 International Religious Freedom Report \(//2009-2017.state.gov/j/drl/rls/irf/2003/\)](https://2009-2017.state.gov/j/drl/rls/irf/2003/).

d. Freedom of Movement within the Country, Foreign Travel, Emigration, and Repatriation

The suspended Constitution provides for the right to move freely throughout the country; however, the Government restricted this right during the year. Police, security forces, customs officers, and other officials harassed travelers unwilling or unable to pay bribes or "taxes" at checkpoints along major intercity roads and at major intersections in Bangui (see Section 1.c.). Attacks by bandits on major routes to the north and east sometimes occurred. In addition, a nightly curfew imposed by the Bozizé Government in March remained in effect until October.

During the 6-month rebellion in the North, which culminated in the March 15 coup, traffic was entirely interrupted on the main roads between Bangui and the upcountry cities, restricting the free movement of the population.

The Patassé Government generally allowed opposition leaders to travel abroad or inside the country without restrictions; however, on January 25, two political leaders, Joseph Bendounga of the Democratic Movement for the Rebirth and the Evolution of CAR and Enoch Derant Lakoue of the Democratic and Social Party were prevented from leaving the country prior to the National Dialogue of Reconciliation (see Section 1.d.). Throughout the year, security forces continued to be stationed at the airport. During and immediately following the March 15 coup, the Government closed M'Poko Airport and all border crossings in the country. Private planes were not allowed to fly without permission from the military.

With the exception of diplomats, the Government required that all foreigners obtain an exit visa from the headquarters of the National Police. Travelers could be required to obtain affidavits to prove that they owed no money to the Government or to parastatal companies.

As a result of fighting between General Bozizé's rebels and security forces, an estimated 30,000 CAR refugees and Chad returnees fled to Chad between mid-February and March 14. Chadian officials reported that since February 20, approximately 3,500 Chadians fled the cities of Bozoum, Paoua, and Sibut for Chad following clashes between government forces and Bozizé's rebels. There were many reported cases of looting and abuses committed against civilians suspected of supporting the rebellion.

In June, the Office of the U.N. High Commissioner for Refugees (UNHCR) repatriated at least 2,000 CAR refugees from northern DRC. At least 1,000 former soldiers also returned to the country. On June 9, the Government established a special commission with the assistance of the UNHCR to welcome approximately 3,000 refugees who returned from the DRC and the Republic of the Congo. In August, the UNHCR began the repatriation of approximately 1,700 CAR refugees from Betou in the ROC, where they had resided since 2001.

In December, the Bozizé Government allowed the UNHCR to repatriate refugees from the DRC using the Oubangui river, which had been closed to human traffic since September. On December 16, a repatriation program facilitated by the UNHCR repatriated approximately 300 refugees from the DRC.

The fighting between the Patassé Government and General Bozizé's rebels resulted in large numbers of IDPs during the year. According to the U.N., between October 2002 and the March 15 coup, an estimated 200,000 persons were internally displaced as the conflict escalated.

The law provides for the granting of asylum or refugee status to persons who meet the definition in the 1951 U.N. Convention Relating to the Status of Refugees or its 1967 Protocol. The Government provided protection against refoulement and granted refugee and asylum status. The Government continued to work with the UNHCR and provided temporary protection to Chadian, Sudanese, Rwandan, and Congolese refugees. Applicants for asylum often were accepted. Almost all refugees were registered with the National Commission for Refugees. According to the UNHCR, by year's end, there were at least 50,000 refugees in the country, among whom 37,000 were from Sudan, and 7,000 from the DRC. Others were from Angola, Burundi, Liberia, and Uganda.

In November, the UNHCR conducted training seminars for gendarmes on basic refugee rights and the refugee-related obligations of security forces. The seminars followed newspaper reports published earlier in the year indicating that some refugees were being recruited as mercenaries. The reports had prompted police and gendarmerie to crack down on refugees from Rwanda, Burundi, and the DRC.

Section 3 Respect for Political Rights: The Right of Citizens to Change their Government

The suspended Constitution provides citizens with the right to change their government; however, in practice, citizens did not have this right following the March 15 coup.

President Patassé's MLPC won both the Presidency and half of the seats in the National Assembly in the 1998 and 1999 elections. International observers deemed both elections generally free; however, the presidential elections were marred by irregularities in voter registration and distribution of electoral materials. The Government strongly influenced the electoral process, and some of the registration irregularities tended to favor the ruling party.

After seizing power, General Bozizé declared himself President, suspended the Constitution, and dissolved the National Assembly. After ruling by decree for a short period, President Bozizé established new government institutions and governed by two constitutional acts. On March 23, President Bozizé appointed Abel Goumba, a civilian and leader of the opposition coalition, as Prime Minister. On March 31, Prime Minister Goumba named a transitional government, composed of 28 members, including representatives of all political parties and civil society representatives. In December, President Bozizé dismissed Goumba and the transitional government and appointed Celestin Le Roi Gaoumbale, a civilian, as Prime Minister and head of a new transitional government.

During the year, President Bozizé also shared power with the NTC, a legislative body comprised of 96 representatives from civil society and all political parties. In November, a government committee announced that the transition was expected to result in the adoption by referendum of a new constitution by September 2004; in addition, presidential, legislative, and municipal multiparty elections would be held between November 2004 and April 2005. In late December, the NTC authorized the Government to collect taxes and customs fees until February 2004, pending the adoption of a new budget.

Between September 15 and October 27, the Government held a national reconciliation dialogue in Bangui intended to end years of armed conflict, coups, and ethnic rivalries. The dialogue's 350 delegates, who represented different political, social, religious and professional affiliations, adopted recommendations to be implemented by a government committee. Although some former presidents of the country and members of former President Patassé's political party participated in the dialogue, former President Patassé remained in exile and was not invited to participate.

The suspended Constitution provides for multiple political parties, and there were no reports that the Government prevented parties from operating freely during the year.

The state remained highly centralized. The central government appointed all subnational government officials, and subnational government entities had no significant fiscal autonomy. Provisions in the suspended Constitution provide for municipal elections; however, by year's end, they had not been held. The country's towns continued to be led by mayors appointed by the President.

Until the National Assembly was dissolved in March, 8 of the 109 members were women, and in the former cabinet, 2 of the 24 members were women. Following the March coup, President Bozizé appointed a woman as governor of Ombella M'poko Province, in which Bangui is located. By year's end, there were 6 women in the 96-member NTC.

President Patassé was a member of the Sara-Kaba ethnic group. Until the March coup, members of northern ethnic groups, including the Sara and Baya, continued to predominate among the President's advisors, in the leadership of the ruling party, and among ruling party members of the National Assembly. There were no Muslims in the Cabinet, but there were at least five Muslims in the National Assembly. President Bozizé was a member of Baya ethnic group. Members of northern ethnic groups, especially the Baya, continued to predominate among the National Army. There were Muslims in the Cabinet and in the National Transitional Council.

Pygmies (Ba'Aka), the indigenous inhabitants of the southern part of the country, represented between 1 and 2 percent of the population; they were not represented in the Government and continued to have little political power or influence (see Section 5).

Section 4 Governmental Attitude Regarding International and Nongovernmental Investigation of Alleged Violations of Human Rights

Several domestic and international human rights groups generally operated without government restriction, investigating and publishing their findings on human rights cases. Government officials were somewhat responsive to their views. Several NGOs, including the Movement for the Defense of Human Rights and Humanitarian Action, the Human Rights Observatory, and some religious groups actively monitored human rights problems. The LCDH publicized human rights violations, including those allegedly committed by the army, and pleaded individual cases of human rights abuses before the courts.

In February, the International Federation of Human Rights Leagues (FIDH) released a report accusing Bemba, Miskine, and former President Patassé of committing war crimes in 2002.

In November, government ministerial aides and lawyers attended a U.N.-sponsored 10-day seminar in Bangui on human rights and the techniques of writing human right reports. A U.N. human rights expert instructed the participants on basic human rights principles and different approaches to human rights protection and promotion.

During the year, the Government established a Truth and Reconciliation Commission to identify the causes of crises and unrest that have harmed the country since 1960. In October, the Commission presented its findings to delegates of the national reconciliation conference. It recommended that President Bozizé enlarge his transitional government to allow for broader consensus in his administration and criticized Bozizé for failing to manage the post-coup period effectively, highlighting human rights abuses and widespread looting committed after the coup. The Commission also solicited public apologies from politicians, the army, and others for abuses and mistakes committed in the past. In addition, the Commission recommended that ethnic groups be fairly represented in the army, that all army recruits be taught international humanitarian law, and that a center for conflict prevention and resolution be established.

Section 5 Discrimination based on Race, Sex, Disability, Language, or Social Status

The suspended Constitution stipulates that all persons are equal before the law without regard to wealth, race, or sex; however, the Government did not enforce these provisions effectively, and significant discrimination existed.

Women

Domestic violence against women, including wife beating, reportedly was common; however, inadequate data made it impossible to quantify. Spousal abuse was considered a civil matter unless the injury was severe. Victims seldom reported incidents. The courts tried very few cases of spousal abuse, although litigants cited these abuses during divorce trials and civil suits. Some women reportedly tolerated abuse to retain a measure of financial security for themselves and their children. The Government did not address this problem during the year.

The law prohibits rape; however, it does not specifically prohibit spousal rape. Police sometimes arrested men on charges of rape; however, the social stigma induced many families to avoid formal court action. There were numerous credible reports that security forces and rebels raped women during and following the March coup (see Section 1.c.).

The law prohibits FGM; however, girls continued to be subjected to this traditional practice in certain rural areas, and to a lesser degree in Bangui. According to the World Health Organization, FGM affected more than 40 percent of girls. In addition, according to a study published jointly by UNICEF and the Government in 2001, approximately 36 percent of adult females had undergone FGM.

Trafficking was a problem (see Section 6.f.).

Women were treated as inferior to men both economically and socially. Single, divorced, or widowed women, even those with children, were not considered to be heads of households. Only men were entitled to family subsidies from the Government. Women in rural areas generally suffered more discrimination than did women in urban areas. There were no accurate statistics on the percentage of female wage earners. Women's access to educational opportunities and to jobs, particularly at higher levels in their professions or in government service, was limited.

Polygamy is legal, although this practice faced growing resistance among educated women. The law authorizes a man to take up to four wives, but a prospective husband must indicate at the time of the first marriage contract whether he intends to take additional wives. In practice, many couples never married formally because men could not afford the traditional bride payment. Women who were educated and financially independent tended to seek monogamous marriages. Divorce was legal and could be initiated by either partner.

The law does not discriminate against women in inheritance and property rights, but a number of discriminatory customary laws often prevailed. A family code further strengthened women's rights, particularly in the courts. The Association of Central African Women Lawyers advised women of their legal rights. The organization also published pamphlets in conjunction with the Ministry of Social Affairs on the dangers of FGM. During the year, several active women's groups organized workshops and seminars to promote women's and children's rights and to participate fully in the political process.

Children

The Government spent little money on programs for children. Churches and NGOs had relatively few programs for youths. The failure of the education system, caused by a meager budget and salary arrears, resulted in a shortage of teachers and an increase in the number of street children. Education was compulsory from ages 6 to 14; however, parents rarely were prosecuted for their children's nonattendance. In practice, the age that a child started school often varied by 2 to 3 years in rural areas. At the primary level, girls and boys enjoyed equal access to education; however, the majority of young women dropped out at age 14 or 15 due to societal pressure to marry and bear children. According to UNICEF, 39 percent of girls of primary school age were enrolled in school, compared with 47 percent of boys. In addition, 35 percent of the country's women were literate compared with 60 percent of men. School enrollment in urban areas generally was significantly higher than in rural areas.

The Government did not provide medical coverage for uninsured children. However, in November, the Government launched a national anti-polio immunization campaign intended to reach at least 650,000 children under 5 years of age.

According to numerous credible reports, male teachers in primary and secondary schools as well as at the university level routinely pressured their female students into having a sexual relationship in exchange for passing grades; the spread of HIV/AIDS was extremely prevalent between teachers and their female students.

The Penal Code forbids parental abuse of children under the age of 15 years. In addition, illegitimate children had the same rights as those born in wedlock. A juvenile court tried cases involving children and provided counseling services to parents and juveniles during the year.

FGM was performed primarily on young girls (see Section 5, Women).

Trafficking and child prostitution were problems (see Section 6.f.).

Child labor was a problem (see Section 6.d.).

There were approximately 5,000 street children between the ages of 5 and 18 residing in Bangui. Many children begged and stole; several charitable organizations provided them with humanitarian assistance.

On February 5, many street children were enrolled in security forces to fight against Bozizé's rebellion. Captain Paul Barril, French mercenary and special advisor to President Patassé, recruited teenagers aged 12 to 15 for military activities on the battlefield, according to various sources. After a few days of military training, they received \$100 and were sent to reinforce the pro-government MLC rebels in Damara and Bossembele. Many of them were killed.

There were several NGOs specifically promoting children's rights, including some which dealt with street children.

Persons with Disabilities

There was no codified or societal discrimination against persons with disabilities; however, there were no legislated or mandated accessibility provisions for persons with disabilities. There were several government- and NGO-initiated programs designed to assist persons with disabilities, including handicraft training for the blind and the distribution of wheelchairs and carts by the Ministry of Social Services.

Indigenous People

Despite constitutional protection, there was societal discrimination against Pygmies (Ba'Aka), the earliest known inhabitants of the rain forest in the southern part of the country. Pygmies comprised approximately 1 to 2 percent of the country's population. In general, Pygmies had little input in decisions affecting their lands, culture, traditions, and the allocation of natural resources. Indigenous forest-dwelling Pygmies, in particular, were subject to social and economic discrimination and exploitation, which the Government has done little to prevent. However, on August 23, the Government issued birth certificates to 97 Pygmy children, thereby effectively recognizing them as citizens and allowing them access to greater civil rights. Pygmies often worked for villagers at wages lower than those paid to members of other groups.

Refugees International released a report during the year on Pygmies, stating that Pygmies occupied the role of "second-class citizens." The report noted that the popular perception of Pygmies as barbaric, savage, and subhuman had seemingly legitimized their exclusion from mainstream society.

National/Racial/Ethnic Minorities

The population included approximately 80 ethnic groups; many of these groups spoke distinct primary languages and were concentrated regionally outside urban areas. The largest ethnic groups were the Baya (33 percent), the Banda (27 percent), the Mandja (13 percent), the Sara (10 percent), the Yakoma (4 percent), and the M'baka (4 percent). The Mbororo comprised approximately 7 percent of the population but played a preponderant role in the economy; they were involved in mining development and remained the most important cattle breeders in the country.

Major political parties tended to have readily identifiable ethnic or ethnic-regional bases.

On February 4, the Government arrested several Chadians in connection with rebel attempts to overthrow the Government. On February 17, the Government released the prisoners following a visit from the President of Chad and the launching of a reconciliation process between the two countries. Thousands of Chadians have been residing in the country for generations and many have acquired citizenship. Since a failed coup attempt in 2001, when General Bozizé fled to Chad with part of the national army, tensions have remained between the Chadian community and those who consider themselves to be native to the country.

Section 6 Worker Rights

a. The Right of Association

Under the Labor Code, all workers were free to form or join unions without prior authorization, and a relatively small part of the workforce, primarily wage earners such as civil servants, exercised this right. There were five recognized labor federations, including the Organization of Free Public Sector Unions and the Labor Union of Central African Workers (USTC), which were independent of the Government.

The law expressly forbids discrimination against employees on the basis of union membership or union activity. Employees can have their cases heard in the Labor Court. The Labor Code does not state whether employers found guilty of anti-union discrimination were required to reinstate workers fired for union activities; however, employers legally were required to pay damages, including back pay and lost wages. There were reports of anti-union discrimination.

Labor federations were free to affiliate internationally, and the USTC was affiliated with the ICFTU.

b. The Right to Organize and Bargain Collectively

The Labor Code grants trade unions full legal status, including the right to file lawsuits. It requires that union officials be full-time wage-earning employees in their occupation, and they may conduct union business during working hours. The Code does not specifically provide that unions may bargain collectively; however, the law protects workers from employer interference in their right to organize and administer their unions. The Government usually was involved in the collective bargaining process. While collective bargaining has taken place in some instances, no collective bargaining occurred during the year.

The Ministry of Labor and Civil Service set wage scales. Collective bargaining played a role in setting wages in private industry. Private sector wages have not changed since they were collectively bargained. Salary arrears continued to be a problem during the year for both civilian and military personnel. The Government owed both groups approximately 30 months of salary arrears. The arrears continued to be a major complaint of the unions. The Bozizé administration paid civil servants their monthly salaries from April until September.

In July, an inter-ministerial commission established in May to investigate the size of the civil service found 866 ghost workers on the payroll. The Bozizé Government said corruption and embezzlement under the Patassé administration resulted in the former government's failure to pay salaries for at least 30 months.

Unions had the right to strike in both the public and private sectors, and workers exercised this right. To be legal, strikes had to be preceded by the union's presentation of demands, the employer's response to these demands, a conciliation meeting between labor and management, and a finding by an arbitration council that union and employer failed to reach agreement on valid demands. The union also was required to provide 8 days' advance written notification of a planned strike. The Labor Code states that if employers initiate a lockout that is not in accordance with the Code, the employer is required to pay workers for all days of the lockout. However, the Government has the authority to end strikes because of public interest. The Code makes no other provisions regarding sanctions on employers for acting against strikers. There were no reports of employer actions against strikers.

On April 30, teachers ended their 7-month national strike for partial payment of their 32 months in salary arrears. An agreement was reached between the Teachers' Federation, which represents two teachers' unions, and the Ministry of Education. On May 5, classes resumed.

There are no export processing zones.

c. Prohibition of Forced or Bonded Labor

The Labor Code specifically prohibits forced or bonded labor; however, there were reports that such practices occurred (see Sections 6.d. and 6.f.). Prisoners were forced to work without compensation for government officials or magistrates. The indigenous Ba'Aka, including children, often were coerced into agricultural, domestic, and other types of labor within the country. The Ba'Aka often were considered to be the slaves of other local ethnic groups, and subjected to wages far below those prescribed by the labor code.

d. Status of Child Labor Practices and Minimum Age for Employment

Child labor was common in many sectors of the economy, especially in rural areas. The Labor Code forbids the employment of children under 14 years of age; however, the Ministry of Labor and Civil Service enforced the provision only loosely. The Labor Code defined the worst forms of child labor as dangerous work or tasks involving serious risks to the child's health, security, or morality. The Labor Code generally covered all labor sectors, although specific regulations covered specific sectors. In some cases, the Labor Code provides that the minimum age for employment could be reduced to 12 years for some types of light work in traditional agricultural activities or home services. Children frequently worked on farms at rural schools.

In some rural areas, teachers or principals used school children as labor on farms, ostensibly to teach them how to work the land since many students did not further their education beyond secondary school (see Section 5). The schools used the proceeds from the sale of the farm produce to purchase school supplies and equipment and to fund school-related activities. In addition, an international agency reported that children worked in the diamond fields alongside adult relatives.

The Labor Code prohibition of forced or bonded labor applies to children, although they are not mentioned specifically; however, forced child labor occurred (see Section 6.c.).

The Government did not have sufficient human or material resources to enforce the prohibition against forced labor effectively.

e. Acceptable Conditions of Work

The Labor Code states that the Minister of Labor must set minimum wages by decree. The minimum wage varies by sector and by kind of work. For example, the monthly minimum wage was equivalent to approximately \$12 (7,800 CFA francs) for agricultural workers but approximately \$28 (18,000 CFA francs) for office workers. The minimum wage did not provide a worker and family a decent standard of living. Most labor was performed outside the wage and social security system, especially by farmers in the large subsistence agricultural sector.

The law sets a standard workweek of 40 hours for government employees and most private sector employees. Household employees may work up to 55 hours per week. The law also requires a minimum rest period of 48 hours per week.

There also were general laws on health and safety standards in the workplace, but the Ministry of Labor and Civil Service neither precisely defined nor actively enforced them, a matter about which the ILO has expressed concern to the Government for many years. The Labor Code states that a labor inspector may force an employer to correct unsafe or unhealthy work conditions, but it does not provide the right for workers to remove themselves from such conditions without risk of loss of employment.

The Labor Code protects both legal and illegal foreign workers.

f. Trafficking in Persons

The law does not prohibit trafficking in persons, and there were reports that persons, particularly children, were trafficked. Child prostitution remained a problem. The Government has recognized that trafficking in persons occurs; however, statistics and specific examples of trafficking were not available.

Traffickers can be prosecuted under laws against slavery, Labor Code violations, mandatory school age laws, and laws against the exploitation of prostitution by means of coercion or fraud. Specific laws address the crime of prostitution and have been used to punish those who trafficked women for the purposes of prostitution.

The Government did not actively investigate cases of trafficking, nor did it use or have access to special investigative techniques in trafficking investigations. A government-established commission studied the extent of the trafficking problem, identified those responsible, and devised a plan to combat the problem; however, few resources have been devoted to the problem. The Ministries of Social Affairs, Interior, Labor, Rural Development, Justice, and Defense were involved in anti-trafficking efforts and were part of the commission. There were no known NGOs specifically working to combat the problem.

Trafficking was confined primarily to children who were brought in by the foreign Muslim community from Nigeria, Sudan, and Chad to be used as domestic servants, shop helpers, and agricultural workers (see Section 5). Merchants, herders, and other foreigners doing business in and transiting the country also brought girls and boys into the country. Such children, who may or may not be related to their caretakers, were not afforded the benefit of a formal education, despite the mandatory school age, and worked without remuneration for their labor. There were a few anecdotal reports of children being trafficked to Nigeria and several other nearby countries for use as agricultural workers. There was no evidence of sexual exploitation, but there were reports that children were publicly beaten.

Some girls entered prostitution to earn money for their families.

In previous years, there were credible reports that persons obtained a Ba'Aka child by deception and subsequently sent the child to Europe for adoption; however, there were no such reports during the year.

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